



File No.: EXP202306619

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant) upon learning that her data had been registered in a solvency file due to a debt, sent a letter to CREDIRECT PRÉSTAMOS, S.L. (hereinafter, the respondent) requesting “(...) all the necessary documentation informing me of the reason for such a claim and how the amount was generated, principal, applied interest, commissions, etc., in order to verify that they conform to the original signed contract, of which I also request a copy. (...)”, as well as the precautionary removal of her data from said files, noting that she has not received the legally established response. She attaches, along with her claim letter, a copy of the request and proof of its sending, dated January 25, 2023.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this claim was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The respondent states that the claimant has not requested at any time her removal from the Asnef file.

“(...) regarding Annex 1 attached to the claim, in which no acknowledgment of receipt certificate is attached, we must indicate that my client resides at ***ADDRESS.1, therefore, there is no record of the receipt of said communication. (...) Since the claimant has not exercised any action to protect her personal data, my client has not made any response to the request until now; however, a payment demand has been sent to her mobile phone (DOCUMENT No. 7 AND No. 8).”

“Once the two contracts were formalized, my client, from the corporate account hola@creditero.es, sent to the email provided by the claimant (***EMAIL.1) the following documents (for each contract):

1. The General Terms and Conditions of the Loan.
2. The loan contract: Specific Conditions of the Contract.
3. The European Standardized Information on Consumer Credit.

(...) Once the loan was due, my client's employees contacted the claimant by phone and via SMS several times to demand the repayment of the loan.

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Specifically, on June 23, 2022, my client diligently made a claim for the amount of money that the consumer owed to the entity. In the communication, my client not only reminded the claimant of the existence of an unpaid debt but also authorized her to make the payment within the 10 days following the communication. It also warned her that failure to pay the debt after the claim would result in the registration of her personal data in the national unpaid debt file ASNEF-EQUIFAX. (...)”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the claimant's requests to be considered satisfied. Consequently, on July 10, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the claim for processing. The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present any allegations they deemed appropriate, stating, in summary, that the claimant contracted a personal consumer loan and has not paid anything. “Therefore, as of the due date of the loan, on June 23, 2022, Credirect made a certified claim for the amount of money that the consumer owed to the entity. In such communication, which has been attached to the file, the client was specifically warned that failure to pay the debt after the claim would result in the registration of her personal data in the ASNEF-EQUIFAX unpaid debt file.”

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, she may formulate any allegations she considers appropriate, not having made any allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by data subjects and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on July 10, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

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Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made within a maximum of one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right relates to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be considered granted if the controller provides remote access to the data, and the request will be deemed fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

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Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

Right to Restrict Processing

Article 18 of the GDPR, which regulates the right to restrict the processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the restriction of processing of personal data when one of the following conditions is met:

a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;

b) the processing is unlawful and the data subject opposes the deletion of the personal data and requests instead the restriction of its use;

c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise, or defense of claims;

d) the data subject has objected to processing pursuant to Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise, or defense of claims, or for the protection of the rights of another natural or legal person, or for reasons of important public interest of the Union or of a Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the restriction is lifted."

It should be noted that the right to restrict processing enables the claimant to have the processing of data limited when the accuracy of the personal data is contested, for a period allowing the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has objected to the processing, while verifying whether the legitimate grounds of the controller prevail over those of the claimant.

VI

Conclusion

In the present case, from the examination of the documentation provided by the parties, it has been established that the claimant sent their request for access and restriction of the processing of their data to an incorrect address, which does not match that of the respondent. Therefore, it cannot be considered that the rights were correctly exercised.

Notwithstanding the above, the respondent, upon becoming aware of the claimant's request, has communicated that, once the personal loan was contracted, they sent a copy of the contractual conditions to the email address provided during the contracting process. Furthermore, regarding the request for precautionary deletion of the data from the solvency files, it has indicated that it is not appropriate, as there is an outstanding debt that has been previously requested.

Consequently, the claim submitted should be dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by Ms. A.A.A. against CREDIRECT PRÉSTAMOS, S.L.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to CREDIRECT PRÉSTAMOS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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